

**THE DEFENCE HOUSING AUTHORITY RAWALPINDI ACT
2013
(XI of 2013)**

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. The Authority
4. Governing Body
5. Executive Board
6. Powers and functions of the Executive Board
7. Powers of the Executive Board to borrow
8. Administrator
9. Powers and functions of the Administrator
10. Meetings
11. Appointments
12. Annual report and accounts
13. Delegation of powers
14. Committees
15. Authority Fund
16. Budget, audit and accounts
17. Power to cancel allotment
18. Conversion of property to a different use
19. Removal of building erected or used in contravention of the Act
20. Power to frame regulations
21. Act not to override other laws
22. Transfer and savings
23. Appeal

24. Validation

25. Removal of difficulty

TEXT

¹THE DEFENCE HOUSING AUTHORITY RAWALPINDI ACT 2013
(XI of 2013)

[14th January, 2013]

**An
Act**

to provide for the establishment of Defence Housing Authority Rawalpindi.

Preamble.— Whereas it is expedient to establish Defence Housing Authority Rawalpindi for the purpose and object of carrying out Schemes and projects of land development *inter alia* for the welfare of the bereaved families of martyrs, war injured, disabled and other persons of the defence forces to boost their morale; to provide financial security in recognition of their selfless services for the defence of the nation; and, to provide for ancillary matters;

It is enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Defence Housing Authority Rawalpindi Act 2013.

(2) It extends to the Specified Area in Rawalpindi ²[Division].

(3) It shall come into force at once and shall be deemed to have taken effect on and from 15 August 2010.

2. Definitions.— In this Act—

- (a) “Administrator” means the Administrator appointed under the Act;
- (b) “Authority” means Defence Housing Authority Rawalpindi established under the Act;
- (c) “Chairman” means Chairman of the Governing Body;
- (d) “Executive Board” means Executive Board constituted under the Act;
- (e) “Governing Body” means Governing Body constituted under the Act;
- (f) “Government” means Government of the Punjab;
- (g) “member” means a member of the Authority and includes the Chairman;
- (h) “prescribed” means prescribed by the regulations framed under the Act;
- (i) “President” means President of the Executive Board;
- ³[(j) “project” means any project of construction, repair, renovation, maintenance, up-gradation and development of land or area

¹This Act was passed by the Punjab Assembly on 7th January 2013; assented to by the Governor of the Punjab on 12th January 2013; and published in the Punjab Gazette (Extraordinary), dated 14th January 2013, pages 2029-2034.

²Substituted for the word “District” by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 2.

undertaken or planned by the Authority to achieve a particular aim in the Specified Area;]

- (k) “Scheme” means any Scheme, plan, facility ⁴[,] project for development of land for residential or commercial ⁵[or other mixed] use undertaken, planned or made and approved by the Authority under the Act;
- (l) “Secretary” means Secretary of the Authority;
- (m) “Specified Area” means all land owned, purchased or procured by, or vested in or leased to the Army Welfare Housing Scheme or the Defence Housing Authority Islamabad constituted under any law before the commencement of the Act in Rawalpindi District and such other land as may, from time to time, be purchased or procured by, or leased to the Authority in Rawalpindi ⁶[Division] and notified by the Government; and
- ⁷[(n) “welfare and rehabilitation activities” mean activities done or undertaken by the Authority, for the welfare and rehabilitation of serving or retired personnel of defence forces, *inter alia*, officers, soldiers, bereaved families of *Shuhada*, war wounded or disabled personnel, or other people.]

3. The Authority.— (1) There shall be established an Authority to be known as Defence Housing Authority Rawalpindi for carrying out the purposes of this Act.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal with power to purchase, procure, hold and dispose of property and shall, by the said name, sue and be sued.

(3) The head office of the Authority shall be at Rawalpindi.

(4) The Authority shall comply with all laws, rules, regulations and bye-laws for the time being in force in the Specified Area.

(5) While designing, planning and executing a Scheme in the Specified Area, the Authority shall adhere to the master plan of ⁸[concerned District in Rawalpindi Division] and ensure that all public roads and revenue paths leading to and from the adjoining areas and access to graveyards shall, as far as possible, be maintained and no change or alteration shall be made in such roads, paths or access except with the prior approval of the Government.

(6) Subject to the financial viability of a Scheme, the Authority shall reserve in a Scheme in the Specified Area at least fifty percent quota for the

³Substituted by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 3(a).

⁴Substituted for the word “or” by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 3(b).

⁵Inserted by the Act *Ibid*.

⁶Substituted for the word “District” by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 3(c).

⁷Substituted by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 3(d).

⁸Substituted for the words “Rawalpindi District” by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 4(a).

bereaved families of the martyrs, war injured, disabled and junior ranks from sepoys to junior commissioned officers of the defence forces.

⁹[(7) In particular and without prejudice to the generality of the provisions of this Act, the Authority shall take all such measures and exercise all such powers as may be necessary for carrying out the purposes of the Act, as well as, to carry out any other work or activity connected therewith, or ancillary thereto.]

4. Governing Body.— (1) The general administration, supervision and control of the affairs of the Authority shall vest in the Governing Body, which shall consist of—

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| (a) | Secretary, Government of Pakistan, Ministry of Defence; | Chairman |
| (b) | Adjutant General Pakistan Army; | Vice Chairman |
| (c) | Director General, Welfare and Rehabilitation, Pakistan Army; | Member |
| (d) | Commissioner, Rawalpindi Division; | Member |
| (e) | Administrator; | Member |
| (f) | Director General, Rawalpindi Development Authority; and | Member |
| (g) | Secretary. | Member/Secretary |

(2) The Governing Body shall—

- (a) review the progress and activities of the Authority;
- (b) lay down policy for the guidance of the Executive Board;
- (c) consider and approve the budget and audit reports of the Authority; and
- (d) transact such other business of the Authority as the Executive Board may place before it.

5. Executive Board.— (1) There shall be an Executive Board which shall exercise such administrative, executive and financial powers of the Authority and do all such acts and things as the Governing Body may delegate or assign to it.

(2) The Executive Board shall consist of—

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|-----|---|------------------------|
| (a) | Adjutant General, Pakistan Army; | President |
| (b) | a serving or retired Major General of Pakistan Army to be nominated by the Chief of Army Staff; | ¹⁰ [Member] |
| (c) | Administrator; | Member |
| (d) | Secretary of the Authority to be appointed by the President; and | Secretary |
| (e) | two residents of Schemes of the Authority. | co-opted Members |

⁹Added by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 4(b).

¹⁰Substituted for the word "Vice President" by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 5.

(3) The Government shall, for a period not exceeding five years at a time, appoint the co-opted members in accordance with the regulations but they shall serve during the pleasure of the Government.

(4) In the performance of its functions, the Executive Board shall comply with the directions of the Governing Body.

6. Powers and functions of the Executive Board.— (1) Subject to all applicable laws and provisions of this Act, the Executive Board may take such measures and exercise such powers as may be necessary for the proper planning and development of the Specified Area and for carrying out the purposes of the Act.

(2) Without prejudice to the generality of the foregoing powers, the Executive Board may, in accordance with all applicable laws, rules and regulations—

- (a) purchase, procure, hold, manage, reclaim and take possession of any property in the Specified Area;
- (b) prepare, plan, develop, notify, execute, implement, maintain, manage and regulate any Scheme in the Specified Area;
- (c) enter into contracts, arrangements, joint ventures, and agreements with any person, for the preparation, planning, development, execution, implementation and maintenance of Schemes in the Specified Area and for carrying out the purposes of this Act;
- (d) incur any expenditure and procure plant, machinery, equipment, instruments and necessary materials;
- (e) carry out, maintain, arrange, manage and provide all facilities, services and utilities, including water, electricity, gas and sewerage in Schemes in the Specified Area so as to ensure that the property is maintained up to the required standards for the benefit of the residents;
- (f) plan, approve and execute mergers and amalgamations with other housing Schemes or cooperative housing societies subject to the approval of the competent authorities of those housing Schemes or housing societies for merger or amalgamation;
- ¹¹[(g) impose, vary, and recover any fee or charges for rendering of any service within any scheme in the specified area including fee for registration with the Authority, transfer fee to be imposed on transfer of a plot within the Authority, management fee, development or re-development charges or additional development charges, maintenance fee, dues and other charges through the committee formed through regulations;]
- (h) lease, purchase, procure, sell, exchange, mortgage, rent out or otherwise dispose of any property vested in the Authority;
- (i) cancel or re-plan any Scheme or part thereof in the Specified Area;

¹¹Substituted by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 6(a).

- (j) apply for acquisition of land to the Government for initiation and completion of the process of land acquisition in accordance with the law governing land acquisition; ¹²[*]

¹³[(ja) carryout welfare and rehabilitation activities in accordance with the provisions of this Act; and]

- (k) do all such acts, deeds and things that may be necessary or expedient for the purpose of proper preparation, planning, development, execution, implementation, management and maintenance of residential and commercial facilities ¹⁴[including arrangement of security] in the Schemes in the Specified Area.

(3) The Executive Board shall meet as and when required or considered necessary by the Administrator in consultation with the President.

(4) The Executive Board shall transact such business at a meeting as the Administrator may place before it.

7. Powers of the Executive Board to borrow.— Subject to the Government rules and guidelines, the Executive Board may obtain loans for purposes of generating capital for its Schemes.

8. Administrator.— (1) The Chief of Army Staff shall nominate a person not below the rank of Brigadier (serving or retired) of Pakistan Army as Administrator of the Authority.

(2) The Administrator shall be the Chief Executive Officer of the Authority.

9. Powers and functions of the Administrator.— (1) Subject to the provisions of this Act and the regulations, the Administrator shall exercise all executive powers of the Authority delegated or otherwise, in accordance with the policy laid down by the Governing Body and the directions or decisions of the Executive Board.

(2) The Administrator may, either by himself or through any officer appointed by the Executive Board in this behalf, carry on the correspondence and shall sign, verify, pursue and file all pleadings and such other documents on behalf of the Authority, in any suit, appeal, petition and proceedings which may be instituted, prepared and filed by or against the Authority in or before any court, tribunal or authority.

(3) The Administrator may, with the approval of the Executive Board, delegate any of his specified powers to any of his subordinate staff, including but not limited to signing contracts, pleadings or any other legal instrument on behalf of the Authority.

(4) Subject to the conditions of delegation of the authority, the authorized officer shall exercise the power of signing the instrument after its approval by the Executive Board or, as the case may be, the Administrator.

¹²The word "and" omitted by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 6(b).

¹³Inserted by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 6(c).

¹⁴Inserted by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 6(d).

10. Meetings.— (1) The Governing Body shall meet at least once every year, on such date, time and place as may be fixed by the Chairman.

(2) The Chairman and, in his absence, the Vice Chairman of the Governing Body shall preside over the meeting of the Governing Body.

(3) The President and, in his absence, the ¹⁵[most senior Member of the Executive Board] shall preside over the meeting of the Executive Board.

(4) The quorum of a meeting of the Governing Body or the Executive Board shall be a majority of the total membership, the fraction being counted as one.

(5) The Secretary shall record, maintain and keep the minutes of all the meetings of the Governing Body or the Executive Board ¹⁶[.]

11. Appointments.— ¹⁷[(1)] The Executive Board may in such manner and on such terms and conditions as may be prescribed, appoint such officers, functionaries, employees, staff, experts, consultants and advisors as may be necessary for purposes of this Act.

¹⁸[(2)] The persons appointed or hired under sub-section (1) shall not, directly or indirectly, during employment or engagement with the Authority, and for a period not exceeding two years thereafter enter into employment, consultation, or otherwise engage in any manner whatsoever with any entity that competes or conflicts with the activities of the Authority, as may be prescribed:

Provided that nothing contained in this sub-section shall apply to any such employment, consultation or engagement, made after seeking prior approval of the Executive Board.]

12. Annual report and accounts.— As soon as may be after the conclusion of a financial year but before 31st day of December, the Executive Board shall, submit to the Governing Body a general report on its affairs including accounts, balance sheet and audit for the financial year.

13. Delegation of powers.— Subject to this Act and the specified conditions, the Governing Body, the Executive Board and the Administrator may authorize any person to perform such functions and duties as may be assigned to him in writing.

14. Committees.— The Governing Body or the Executive Board may constitute such committees as may be necessary for the efficient performance of their respective functions and assign to such committees such functions as may be deemed necessary.

15. Authority Fund.— (1) There shall be a fund to be known as the Defence Housing Authority Rawalpindi Fund which shall vest in the Authority and to which shall be credited all moneys received by the Authority.

¹⁵Substituted for the word “Vice President” by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 7.

¹⁶Misprinted in the Gazette.

¹⁷Numbered as “(1)” by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 8.

¹⁸Added by the Act *ibid*.

(2) The fund shall be kept in a scheduled bank or financial institution and shall be utilized and regulated in such manner as may be prescribed.

(3) The funds may, with the approval of the Executive Board, be invested in any banking, financial or non-banking financial institution.

16. Budget, audit and accounts.— The budget of the Authority shall be approved by the Governing Body and its accounts shall be maintained and audited in such manner as may be prescribed.

17. Power to cancel allotment.— The Governing Body or the Executive Board may cancel, revoke or rescind any allotment, transfer, license, lease or agreement in respect of any plot or housing unit in a Scheme in the Specified Area if the allottee, transferee, licensee or lessee fails to pay the dues or installments, including development charges, in respect of such plot, or housing unit within three months from the date of receipt of the demand notice in writing or within such extended time as the Governing Body or the Executive Board may, in special cases, fix and thereupon the plot or the housing unit, with or without construction thereon, shall be resumed and shall vest in the Authority.

18. Conversion of property to a different use.— (1) If a person converts any property in a Scheme in the Specified Area to a use or purpose other than the one provided under the Scheme, without the previous written approval of the Authority, such person shall be liable to fine which may extend to two thousand rupees per day from the date of the conversion of the property till the default continues.

(2) The Authority shall not impose the fine under sub-section (1) unless the person concerned is afforded an opportunity of hearing.

19. Removal of building erected or used in contravention of the Act.— (1) If any land is used or building, structure, work on land is erected, constructed or used in contravention of the provisions of this Act or any regulations or orders made thereunder, or in contravention of the Scheme or without the permission of the Authority, the Authority or any person authorized by it in this behalf, may, by order in writing, require the owner, occupier, user or person in control of such land, building, structure, work on land to remove, demolish or alter the building, structure or work or to use it in such manner as may bring such erection, construction or use in accordance with the provisions of this Act.

(2) If an order under sub-section (1), in respect of any building, structure, work or land is not complied with in such time, as may be specified therein, the Authority or any person authorized by it in this behalf, may, after giving the person concerned an opportunity of being heard, remove, demolish or alter the building, structure or work, or stop the use of the land, or seal the building, premises and in so doing, may use such force as may be necessary and may also recover the cost thereof from the person responsible for the erection, construction, or use of the building, structure, work or land.

¹⁹**[20. Power to frame regulations and bye-laws.**— (1) The Governing Body may, on the recommendation of Executive Board, for carrying out the purposes of

¹⁹Substituted by the Defence Housing Authority Rawalpindi (Amendment) Act 2025 (VIII of 2025), published in the Punjab Gazette (Extraordinary), dated: 29 January 2025, pp. 2709-2710, s. 9.

this Act, frame regulations not inconsistent with the provisions of this Act or any other law, regulations or bye-laws for the time being in force in the Specified Area.

(2) For carrying into effect the purposes of sub-section (1), the Executive Board may make bye-laws not inconsistent with the provisions of this Act and regulations made thereunder and any other law, rules, regulations and bye-laws, for the time being in force.]

21. Act not to override other laws.— The provisions of this Act shall be in addition to and not in derogation of any other law for the time being in force.

22. Transfer and savings.— (1) After the repeal of the Defence Housing Authority Islamabad Ordinance 2010 (XV of 2010) and on commencement of this Act, to the extent of the Specified Area in District Rawalpindi—

- (a) all assets, rights, powers, authorities and privileges and all property, movable and immovable, cash and bank balances, reserve funds, investments and all other interests and rights in or arising out of such property and all liabilities and obligations of whatever kind of the Defence Housing Authority Islamabad, shall be transferred to and vested in the Authority;
- (b) all contracts and agreements entered into, all rights acquired and all matters and things agreed to be done by, with or for the Defence Housing Authority Islamabad shall be deemed to have been entered into, acquired or agreed to be done by, with or for the Authority;
- (c) all leases executed, all grants made and all lands vested in the name of the Defence Housing Authority Islamabad shall be deemed to be leases executed, grants made and, property vested in the name of the Authority;
- (d) all contracts, projects, Schemes, work (whether in progress or not) and all guarantees, undertakings, obligations, liabilities and mortgages, executed or subsisting in the name of the Defence Housing Authority Islamabad shall be deemed to be contracts, projects, Schemes, works, guarantees, undertakings, obligations, liabilities and mortgages of the Authority;
- (e) all pending disputes in respect of the Defence Housing Authority Islamabad, shall stand transferred to and be decided by the Administrator and any party aggrieved by his decision shall have the right of appeal to the Executive Board whose decision thereon shall be final;
- (f) all suits, petitions and other legal proceedings instituted by or against the Defence Housing Authority Islamabad, shall be deemed to be suits, petitions, and proceedings by or against the Authority;
- (g) all allotments and transfers of plots, whether residential, commercial or otherwise, made by the Defence Housing Authority Islamabad shall be deemed to be allotments and transfers made by the Authority; and
- (h) all bye-laws and regulations in force immediately before the commencement of this Act made by the Defence Housing Authority Islamabad, shall continue to remain in force until, altered or repealed by the regulations framed under the Act.

(2) Notwithstanding anything contained in subsection (1), the Executive Board may—

- (a) alter the area of any plot involving duplicate allotments and re-allot the same in such manner as it may consider appropriate; and
- (b) pass such orders in respect of transfer of plots involving duplicate allotments as it may deem fit.

23. Appeal.— Any person aggrieved by an order of cancellation under section 17, or imposition of fine under section 18, or an order under section 19, or an order of the Executive Board under section 22 may, within fifteen days of the communication of the order, file an appeal before the Governing Body, whose decision shall be final.

24. Validation.— All actions taken by the Authority from 15 August 2010 till the commencement of this Act shall, to the extent they are consistent with this Act, be valid.

25. Removal of difficulty.— If any difficulty arises in giving effect to any provision of this Act, the Government may, within two years of the commencement of this Act, give such directions, not inconsistent with the provisions of the Act, as it may consider necessary for the removal of such difficulty.